

		other words, the Agreement permits plaintiff to seek public injunctive relief in arbitration. Plaintiff provides no authority that a claim for public injunctive relief is a “class or collective action” under California law. Plaintiff also argues the Agreement impermissibly includes a representative PAGA waiver. A wholesale waiver of a PAGA claim is unquestionably unlawful. <i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal. 5th 1104, 1125 (representative portions of PAGA claims cannot be waived). However, the Agreement does not purport to do so as it never mentions PAGA or any “representative” claims. As defendant points out, there is a distinction between a “collective” claim and a PAGA claim, which is representative. <i>See Barera v. Apple American Group LLC</i> (2023) 95 Cal.App.5th 63, 86 (“[T]here was no mention of a representative PAGA claim, which, under <i>Viking River</i>, is distinct from class or collective actions. As such, there was no limitation precluding the representative PAGA claims from being arbitrated in the same proceeding as the individual PAGA claims.”). Accordingly, the court finds the class action waiver is enforceable. Defendant is ordered to give notice of this ruling.
17	30-2025-01535559 Wagner vs. Anaheim Arena Management, LLC	Defendant Anaheim Arena Management, LLC’s unopposed Motion to Compel Arbitration is GRANTED. An ADR Review hearing is scheduled for December 16, 2027 at 9:00 a.m. in Department CX103. The parties are ordered to file a joint status conference report at least 16 court days prior to the hearing. Existence of Agreement to Arbitrate The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i>

	While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. <i>Gamboa v. Ne. Cmty. Clinic</i> (2021) 72 Cal. App. 5th 158, 164–67. If the moving party meets its initial prima facie burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, in the third step, the moving party must present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. <i>Gamboa, supra</i>, 72 Cal. App. 5th at 164–67. Defendant has met its initial burden of demonstrating the existence of an arbitration agreement between the parties. <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413; <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972. Defendant presents evidence, through its Vice President of Talent Acquisition & Team Member Experience, Angel Montes, that plaintiff signed the “Mutual Agreement to Arbitrate Claims (the “Agreement”) on 08-26-2021. ROA 11 Ex. 1. Since defendant satisfied the initial burden of demonstrating that a valid arbitration agreement exists, the burden shifts to plaintiff to challenge the authenticity of the agreement. Plaintiff makes no such challenge. The court therefore finds an agreement to arbitrate exists. Relevant Terms The Agreement consists of three pages. ROA 11 Ex. 1. The Agreement requires the parties to arbitrate “any and all disputes, claims or controversies.” <i>Id.</i> at 1. The Agreement contains an express class and collective action waiver. <i>Id.</i> at 2. The court finds the Agreement covers the claims asserted by plaintiff and that the class waiver is enforceable. Federal Arbitration Act The Agreement expressly provides the FAA applies. ROA 11 Ex. 1 at 2. Defendant has also presented undisputed evidence it
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	is engaged in interstate commerce. ROA 11 ¶ 11. The court thus finds the FAA applies. Enforceability In <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening” the FAA’ or California law.” <i>Id.</i> at 125; <i>accord AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339. “Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 113. 113. To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243; <i>see also OTO, L.L.C., supra</i>, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” <i>Armendariz, supra</i>, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. <i>Sanchez v. Carmax Auto Superstores California, LLC</i> (2014) 224 Cal.App.4th 398, 402. The court finds the Agreement is not unconscionable in any respect and is thus fully enforceable on its terms. Plaintiff is ordered to individually arbitrate his claims against defendant. Additionally, the class claims shall be dismissed without prejudice pursuant to the Agreement’s valid class
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		action waiver. Finally, the action is otherwise stayed pending the outcome of the arbitration. 9 U.S.C. § 3; C.C.P. § 1281.4. Defendant is ordered to give notice of this ruling.
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